

into the language of the proceedings. Under R. 4(5) EPC the EPO must, if necessary, provide at its own expense interpretation into the language of the proceedings, or, where appropriate, into its other official languages, unless such interpretation is the responsibility of one of the parties.

In T 34/90 (OJ 1992, 454) the board reiterated the principle that appeal proceedings are not a mere continuation of first-instance proceedings, but are, for the purpose of deciding the permissibility of using an alternative official language under R. 2(1) EPC 1973 (R. 4(1) EPC), as for other procedural purposes, wholly separate and independent from those. Accordingly, it rejected the respondent's attempt to use the other official language already used by it in the oral proceedings before the opposition division, without fulfilling the requirements of R. 2(1) EPC 1973 as they applied to the pending appeal proceedings.

See also the communication from the Vice-President of DG 3, OJ SE 3/2007, 118.

In T 774/05 the board stated that R. 2(1) EPC 1973 (R. 4(1) EPC) implied that a party could choose to use one of the official languages set out in Art. 14(1) EPC 1973 and was entitled to speak and hear that language. However, a party had to be clear as to which official language it wished to use. The party then had a right to both speak and hear in that language, so long as the conditions of R. 2(1) EPC 1973 were fulfilled. The party did not, however, have a right to have a language in which it would speak and a different language in which it would listen.

In T 418/07 the respondent announced that it would use German at the oral proceedings (language of the proceedings being English) and requested the board to provide translation from German into English for the benefit of one of its employees who would attend the oral proceedings and who did not speak German. The board stated that a party's right to interpreting from either of the two other official languages was circumscribed by R. 4 EPC. A party which elected to use a language which was not understood by one of its own representatives or employees could not for that reason request a free translation. The board could not provide translation merely to suit the convenience of a party.

In T 2422/10 the board rejected the respondent's argument that it had an absolute right to interpreting into English as the language of the proceedings. The general rule needed to be set against the principle of efficiency of the proceedings and the duty of all services of the EPO, including the boards of appeal, to observe the finances of the EPO. The wording of R. 4(5) EPC allowed the board to assess the necessity of such interpreting (cf. T 131/07). It was evident that the respondent's representative was quite capable of understanding any oral submissions of the appellant in German without interpretation. See also T 2696/16.

In T 1895/13 the appellant complained that the oral proceedings at first instance had been held without interpreters although it had requested simultaneous translation in time. It argued that the examining division had no discretion to refuse interpretation in such a situation (R. 4(1) EPC) and had also infringed the appellant's right to be heard (Art. 113(1) EPC). The board referred to case T 2249/13, concerning a comparable situation, in which the board had stated in its communication that even if a procedural

violation might have occurred, it did not appear to have substantially affected the appellant's right to be heard, and that the appellant had addressed only hypothetical problems that might occur in general if the right to exchange arguments in a desired language was restricted. The current board added that indicating a potential problem did not mean that the problem had actually occurred. The burden of proof lay with the appellant, who had not satisfied its obligation to submit facts allowing an assessment of whether there had been a substantial violation of rights.

In T.2109/15, the board pointed out that the EPC did not impose any requirements as regards a party's hiring of interpreters beyond those in R.4(1) and (5) EPC and, in particular, did not contain any provision requiring that the parties agree on the choice of interpreter. According to the opponent, it had hired professional interpreters regularly working at oral proceedings before the EPO. The board could see no reason to doubt that the oral proceedings had been conducted fairly and that the parties' right to be heard had been observed.

In T.2422/10 (see above) the respondent was also accompanied by an expert, whom the board decided not to hear following the criteria of G.4/95 (OJ 1996, 412). In these circumstances the board considered that interpretation into English for the expert at the expense of the EPO would not be justified. Accompanying persons did not have an automatic right to it.

The matter of the language arrangements in oral proceedings in relation to an accompanying person also arose in T.131/07 and R.3/08 (for the latter see chapter V.B.4.3.18).

For a case which concerns the discretion given to the EPO under R.4(1), last sentence, EPC to derogate from the provisions of this Rule, see T.982/08. On the costs of interpreting in oral proceedings see also chapter III.C.8.2. and T.2109/15.

4. Language privilege

According to Art. 14(4) EPC, natural or legal persons having their residence or principal place of business within the territory of a contracting state having a language other than English, French or German as an official language, and nationals of that state who are resident abroad, may file documents which have to be submitted within a given time limit in an official language of that state (these languages are sometimes referred to as "admissible non-EPO languages"). A translation in an official EPO language must also be filed (see R.6(2) EPC). The scope of the fee reductions available in respect of documents filed in accordance with Art. 14(4) EPC has been limited with effect from 1 April 2014 (see in this chapter III.F.6.). For the language provisions with respect to the filing of the European patent application itself, see in this chapter III.F.1.

The board in T.149/85 (OJ 1986, 103) decided that it is inadmissible for a German opponent to file an opposition in Dutch even if represented by a Dutch patent attorney.

In T 1152/05 the notice of appeal was filed in Dutch by a company which had its principal place of business in the US and thus could not benefit from the provisions of Art. 14(4) EPC. A translation into French was filed on the same day. The notice of appeal was deemed not to have been filed. Following G 6/91 (OJ 1992, 491), if the translation was filed at the same time as the original, the EPO could not take it as the "official" notice of appeal and ignore the original as superfluous. See also T 41/09.

5. Translations

Concerning the filing of a required translation of a European patent application, see in this chapter III.F.1.

Under Art. 14(4) EPC, if any required translation of a document filed in accordance with that provision is not supplied in due time (see R. 6(2) EPC), the document is deemed not to have been filed (cf. Art. 14(5) EPC 1973).

In T 323/87 (OJ 1989, 343), the translation of the notice of appeal required under Art. 14(4) EPC 1973 was not filed in due time in accordance with R. 6(2) EPC 1973. The notice of appeal was therefore deemed not to have been received (Art. 14(5) EPC 1973), and the appeal was held not to have been filed. See also T 193/87 (OJ 1993, 207), which concerned a notice of opposition.

However, in T 126/04 the board did not follow T 323/87 with respect to the legal consequence of failure to comply with the time limit. It held that the only possible interpretation of the reference in R. 65(1) EPC 1973 to R. 1(1) EPC 1973, which itself referred to Art. 14(4) EPC 1973, was that R. 65(1) EPC 1973 determined the legal consequence of failure to file a translation of the notice of appeal as required by Art. 14(4) EPC 1973. The legal consequence was therefore the **inadmissibility of the appeal**. It was not a case of conflict within the meaning of Art. 164(2) EPC 1973, since R. 65(1) EPC 1973 was a *lex specialis*. The provisions of R. 65(1) EPC 1973 are now to be found in R. 101(1) EPC, which does not refer to R. 3(1) EPC, the equivalent to R. 1(1) EPC 1973.

In T 170/83 (OJ 1984, 605) a debit order was filed in error in Dutch. The board held that Art. 14 EPC 1973 did not apply – a debit order did not have to contain text in a language at all, whilst remaining quite clear. The question whether a debit order in a non-official language was effective therefore did not arise.

In T 700/05, the board found that, taking into account that Euro-PCT applications were deemed by Art. 153(2) EPC to be European applications and the principle that they thus had to be treated as favourably as applications made in a contracting state, a PCT application originally filed in Japanese had to be treated in the same way as an application filed in the language of a contracting state which was not an official language of the EPC. Art. 14(2) EPC 1973 had thus to be applied by analogy to allow also the translation into English of an original PCT application in Japanese to be brought into conformity with the original Japanese text of the application throughout the proceedings before the EPO, i.e. including opposition and appeal proceedings. See also T 1483/10, T 2410/11, T 2202/19.

Shortly before the oral proceedings before the board in case **T.265/11**, the appellant (opponent) filed an uncertified translation of the claims of the international application underlying the patent. It argued that it was evident from this translation that certain features were different in the originally filed claims with respect to the English translation filed on entry into the European phase (Art. 158(2) EPC 1973), and requested that the newly filed translation be used as a basis for the analysis under Art. 123(2) EPC. The board affirmed that an international application for which the EPO is a designated or elected Office, and which has been accorded an international date of filing, is equivalent to a regular European application (Art. 150(3) EPC 1973; now Art. 153(2) EPC). R. 7 EPC 1973 applied *mutatis mutandis* to the translation filed under Art. 158(2) EPC 1973. As no evidence had been provided that the translation already on file was not in conformity with the original text of the application, the board, in accordance with R. 7 EPC 1973, assumed that translation to be in conformity with the original text of the application for the aforementioned purpose.

In **T.1332/12**, the board applied the same reasoning to admit a corrected (machine) translation, submitted by the patent proprietor, of a Japanese prior-art document which the opposing party had filed along with a – now contested – translation, as evidence of lack of inventive step. As to the provision of a translation of a crucial prior-art document in examination proceedings, see **T.1343/12** and **T.655/13**.

Concerning translation points in relation to amendments see chapter II.E.1.2.3.

6. Language-related fee reductions

Under R. 6(3) - (7) EPC (as in force from 1 April 2014 – see decision of the Administrative Council of 13 December 2013, OJ 2014, A4) certain categories of applicants fulfilling the requirements of Art. 14(4) EPC are eligible for a fee reduction when filing a European patent application or request for examination (see also notice of 10 January 2014, OJ 2014, A23). Only one of multiple such applicants need fulfil the Art. 14(4) EPC requirements (**J.4/18**) (see R. 6(7) EPC). A corresponding language-related fee reduction is no longer available for oppositions, appeals, requests for limitation or for revocation, or petitions for review (for earlier decisions concerning the former reduction of the opposition and appeal fees, see "Case Law of the Boards of Appeal", 7th ed. 2013, III.F.5).

In **G.6/91** (OJ 1992, 491) the Enlarged Board of Appeal ruled that the persons concerned were only entitled to the fee reduction under R. 6(3) EPC 1973 if they filed the **essential item of the first act** in filing, examination, opposition or appeal proceedings (note: the last two cases are no longer relevant – see previous paragraph) in an official language of the state concerned other than English, French or German, and supplied the necessary translation **no earlier than simultaneously** with the original. According to **T.905/90** (OJ 1994, 306, Corr. 556), neither a request for a fee reduction, nor a notification that only a reduced fee had been paid, was an essential part of the first act of the relevant proceedings (see also **J.4/88**, OJ 1989, 483).

6.1. European patent application

Under the EPC 1973, an application could be filed in an official EPO language (Art. 14(1) EPC 1973) or, by persons benefiting from the "language privilege", in an official language of a contracting state other than English, French or German (Art. 14(2) EPC 1973).

According to J 4/88 (OJ 1989, 483, see headnote), for the purposes of Art. 14(2) EPC 1973 and R. 6(3) EPC 1973 it was sufficient if the description and claims were filed in an official language of a contracting state other than English, French or German; it was not significant for this purpose that other parts of the European patent application were filed in one of the official languages of the EPO only (further to J 7/80, OJ 1981, 137 – see in this chapter III.F.1.). If the applicant availed himself of the option provided in Art. 14(2) EPC 1973 both the filing fee and the examination fee were reduced (R. 6(3) EPC 1973).

6.2. Request for examination

J 4/88 (OJ 1989, 483) (see in this chapter III.F.6.1.) deals with the reduction of both the filing fee and the examination fee.

In J 21/98 (OJ 2000, 406) the applicant, who had filed a request for examination in Italian within the time limit of Art. 94(2) EPC 1973 (see now R. 70(1) EPC), and simultaneously an English translation, had been refused the reduction in the examination fee. According to the Receiving Section, the written request for examination in Italian should have been filed together with the request for grant. However, according to the board, Art. 94(2) EPC 1973, in conjunction with Art. 75, Art. 92 and Art. 94(1) EPC 1973, was to be interpreted such that, within the grant procedure, the request for examination constituted an **autonomous step** quite separate from the (previous) step of filing the patent application, enabling the applicant to consider whether to continue the grant procedure in the light of the search report. Since the EPC 1973 gave the applicant the right to file the request for examination after the publication of the search report, it followed that the same right had to be owed to the applicant who wanted to avail himself of the option provided for in Art. 14(2) and (4) EPC 1973 (see also J 22/98, J 6/99, J 14/99 and J 15/99).

In J 36/03 the board held that the examination fee should be reduced if the request for examination was filed in an authorised non-official language, even in cases where the **application was transferred, before the examination fee was paid**, to an applicant who was not one of the persons referred to in Art. 14(2) EPC 1973.

J 4/18 concerned the application of the examination fee reduction (R. 6(3) – (7) EPC, Art. 14(1) RFees) to multiple applicants (see also in this chapter III.F.6.).